

23STCV22094 23STCV22094

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MOTION TO COMPEL

The Court

tenders the following tentative decision in the matter Dana Traci Bryant v. Alameda Mortgage Corp., et al., Los Angeles County Superior Court case number 23STCV22094, set for hearing on July 22, 2026. Dana Traci Bryant (Plaintiff) separately moves for orders compelling further responses to special interrogatories, set one (SPROGs) propounded upon Alameda Mortgage Corp. (AMC), Timothy Larin, and Jason Smith (collectively, Defendants). Plaintiff also requests monetary sanctions in an unspecified amount. Only Smith has filed an opposition brief. Plaintiff's motions to compel further responses are granted in part. The Court does not award sanctions.

A.

Legal Standard

A party may move for an order compelling further responses to interrogatories if the propounding party deems that responses are incomplete, evasive, contain meritless objections, or improperly exercise the option to produce documents under section 2030.230. (Id., § 2030.300, subd. (a).) "For discovery purposes, information is relevant if it 'might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.' [Citation]. Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. [Citation] These rules are applied liberally in favor of discovery." (Gonzales v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) "If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given, or the production be made on the

resumption of the deposition.” (Code Civ. Proc., § 2025.480, subd. (i).)

B. Discussion

Plaintiff seeks further responses to SPROGs 1–45 from AMC, SPROGs 1, 9–13, 17–19, 21, 22, and 25 from Larin, and SPROGs 1–13, 39, and 40 from Smith. The Court will address each motion in turn.

AMC must provide further responses to SPROGs 6–8 and 15 only.

Plaintiff moves to compel further responses to SPROGs 1–45 from AMC. Plaintiff argues that AMC’s boilerplate objections are improper. Further responses are required where a party demonstrates that an objection is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a)(3).) Here, Plaintiff represents that AMC’s responses “consist of the same five objections applied verbatim to nearly every one of the 45 interrogatories, without any explanation of why a particular interrogatory is objectionable.” (Plaintiff’s Motion, p. 5.) However, this is not the case. Each objection specifically states why that objection applies to the relevant interrogatory. Thus, the Court does not find the objections to be too general. Plaintiff additionally argues that AMC’s responses are evasive or incomplete. (Code Civ. Proc., § 2030.300, subd. (a)(1).) After reviewing the relevant SPROGs, the Court determines that SPROGs 6–8 and 15 contain evasive or incomplete responses without valid objections, warranting further responses. AMC’s objections to SPROGs 28–45 are well founded as these are identical to Plaintiff’s earlier form interrogatories seeking information as to AMC’s affirmative defenses. Accordingly, Plaintiff’s motion to compel further responses to SPROGs directed at AMC is granted with respect to SPROGs 6–8 and 15 only.

Larin must provide further responses to SPROG 1 only.

Plaintiff moves to compel further responses to SPROGs 1, 9–13, 17–19, 21, 22, and 25 from Larin. Plaintiff argues that Larin’s objections are improper. Further responses are required where a party demonstrates that an objection is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a)(3).) Here, with respect to SPROG 1 Larin’s objections regarding his inability to answer as an individual or to whom the

SPROG is directed are without merit; thus, a further response is required. Plaintiff additionally argues that Larin's responses are evasive or incomplete. (Code Civ. Proc., § 2030.300, subd. (a)(1).) After reviewing the relevant SPROGs, the Court determines that Larin's answers do not contain evasive or incomplete responses without valid objections. Accordingly, Plaintiff's motion to compel further responses to SPROGs directed at Larin is granted with respect to SPROG 1 only.

Smith must provide further responses to SPROG 40 only.

Plaintiff moves to compel further responses to SPROGs 1–13, 39, and 40 from Smith. As a threshold matter, Smith argues that Plaintiff's meet and confer efforts are insufficient since Plaintiff merely provided Smith with her proposed separate statement. However, this document properly informed Smith of the allegedly deficient responses at issue; thus, Plaintiff properly met and conferred before filing the present motion pursuant to Code of Civil Procedure section 2016.040.

Plaintiff argues that Smith's objections are improper. Further responses are required where a party demonstrates that an objection is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a)(3).) Here, Plaintiff asserts that the objections are identical, however that is not the case. While Smith identifies many SPROGs as ambiguous, he explains why. Additionally, Smith's objections regarding his inability to answer as an individual or to whom the SPROG is directed are proper. Plaintiff additionally argues that Smith's responses are evasive or incomplete. (Code Civ. Proc., § 2030.300, subd. (a)(1).) After reviewing the relevant SPROGs, the Court determines that only Smith's answer to SPROG 40 is evasive and does not include a valid objection. Accordingly, Plaintiff's motion to compel further responses to SPROGs directed at Smith is granted with respect to SPROG 40 only.

The Court does not award sanctions.

Plaintiff requests monetary sanctions. Sanctions are warranted for unsuccessfully making or opposing a motion to compel further responses. Here, Defendants acted with substantial justification in opposing the present motions to compel further responses, as

evidenced by the Court only granting Plaintiff's motions in part. Thus, sanctions are not warranted. Accordingly, the Court does not award sanctions.

C. Conclusion

The Court grants Plaintiff's motions to compel further responses in part. AMC is ordered to provide further responses to SPROGs 6–8 and 15, Larin to SPROG 1, and Smith to SPROG 40, within 30 days. The Court does not award sanctions.